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NexusTech Solutions LLC — Separation Agreement and Mutual Release

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Document kind: separation
Entity: NexusTech Solutions LLC — Delaware, US (shell)
Registration: DE-HRB-889421
Domain: nexustech-sec.io
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SEPARATION AGREEMENT AND MUTUAL RELEASE

This Separation Agreement and Mutual Release ('Agreement') is entered into between:

Employer : NexusTech Solutions LLC, a Delaware limited liability company,
1209 Orange Street, Wilmington, DE 19801 ('Company');

and

Employee : Marcus J. Albright, residing at 142 Pine Hollow Road, Westport, CT 06880
('Employee'), most recently employed as Vice President, Engineering.

Recitals

WHEREAS Employee's employment with Company terminated effective 2026-01-15;
WHEREAS the parties wish to fully and finally resolve all matters arising from or
related to Employee's employment and the cessation thereof;
NOW THEREFORE, in consideration of the mutual covenants herein, the parties agree:

1. Separation payments

- 1.1 Lump-sum severance of USD 487,500 (gross), equivalent to 9 months base salary,
payable within 14 calendar days of the Effective Date by wire to:
Bank: Citibank N.A. (Stamford, CT)
A/C : 4002-118-7740 (Marcus J. Albright)
ABA : 021000089
- 1.2 COBRA premium reimbursement up to 18 months, capped at USD 32,400 aggregate.
- 1.3 Accelerated vesting of 28,500 unvested RSUs (Tranche 4 of 2024 grant), with
same-day settlement under the Company's broker arrangement (Morgan Stanley
at Work, account ending 4419). Tax withholding at 37% federal + applicable
CT state.
- 1.4 No further bonus, equity refresh, or commission shall accrue.

2. Cooperation

- 2.1 Employee shall make himself reasonably available, through 2026-12-31, to
assist Company counsel (Trent & Hadley LLP, lead H. Trent) with the pending
SDNY litigation (Case 1:25-cv-04471, Northbridge Holdings v. NexusTech).
- 2.2 Reasonable expenses reimbursed at IRS rates; legal counsel of Employee's
choosing reimbursed up to USD 1,250 per hour, capped USD 60,000 total.

3. Non-disparagement

- 3.1 Mutual. Neither party shall make any written or oral statement, public or private, that disparages the other. Internal references (informal back-channel comments by Company staff) attributable to a specific Company officer constitute a breach.
- 3.2 Pre-cleared LinkedIn statement: 'Marcus is departing NexusTech to pursue new opportunities; we thank him for his contributions and wish him well.'

4. Confidentiality and continuing obligations

- 4.1 Employee re-affirms the IP Assignment and Confidentiality Agreement signed 2021-08-04 (Exhibit B), including all defined Trade Secrets.
- 4.2 Specifically protected categories: (a) the design and pricing of the 'Affiliate Onboarding Program' (project codename 'Vortex'); (b) all material relating to the Q4 2025 incident discussed in Board Resolution BR-2025-12-09 (separately bound, eyes-only); (c) the customer roster of the Tier-1 cohort.
- 4.3 Non-solicit (employees, customers) for 24 months. Geographic scope: worldwide.

5. Release of claims

Employee releases all claims arising from or related to his employment, including without limitation claims under Title VII, ADEA (subject to OWBPA 21-day review and 7-day revocation), CT FEPA, common law tort, contract, equity. Carve-outs: workers' compensation, vested 401(k), indemnification under the Operating Agreement (§9.6) and the D&O policy (Chubb #DO-2024-118).

6. Return of property

Employee certifies the return of: (i) MacBook Pro serial C02G44K7Q05N; (ii) YubiKey 5C NFC serial 23-441-887; (iii) all physical and electronic copies of Company materials. Personal devices to be wiped of any Company data within 7 days; Company waives forensic verification.

7. Governing law and venue

Delaware. Venue: Court of Chancery, New Castle County.

Counsel for Employer : Harold S. Trent — htrent@trenthadley.com — Trent & Hadley LLP
Counsel for Employee : Diane R. Kessler — dkessler@kesslerlaw.com — Kessler PLLC

Signed and effective the date last signed below.

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